

23BBCV01821 23BBCV01821

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23BBCV01821 Hearing Date: July 10, 2026 Dept: A

MOTION TO DETERMINE

GOOD FAITH SETTLEMENT

Los

Angeles Superior Court Case # 23BBCV01821

MP: Defendant Matthew Atiwat Marz (Doe 1)

RP: No opposition received

NOTICE:

The Court

is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given either

by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

A.

Complaint

Plaintiff

Cheryl Redden ("Redden") alleges that on April 18, 2022, she was involved in a motor vehicle collision with Defendants Arnold Mooradian ("Mooradian") and Matthew Atiwat Marz ("Marz"), causing her injuries.

The Complaint,

filed August 8, 2023, alleges: (1) Motor Vehicle Negligence; and (2) General Negligence.

B.

Cross-Complaints

On February

25, 2025, Mooradian filed a Cross-Complaint against Marz for: (1) Indemnification; (2) Apportionment of Fault; and (3) Declaratory Relief.

On February

24, 2025, Marz filed a Cross-Complaint against Redden and Mooradian for: (1) Indemnity/Equitable Indemnity; (2) Apportionment; (3) Contribution; and (4) Declaratory Relief.

MOTION

ON CALENDAR:

On June

11, 2026, Marz filed a Motion to Determine Good Faith Settlement (C.C.P. § 877.6(a)(1).) and filed a Notice of Non-Opposition. The Court notes that, pursuant to C.R.C. Rule 8.54(c), a failure to oppose a motion may be deemed consent to its being granted.

LEGAL STANDARD:

Under

C.C.P. § 877.6, "[a] determination by the court that [a] settlement was made in good faith shall bar any other joint tortfeasor . . . from any further claims against the settling tortfeasor . . . for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (C.C.P. § 877.6(c).) "The party asserting the lack of good faith has the burden of proof on that issue." (C.C.P. § 877.6(d).)

C.C.P. §

877.6 requires “that the courts review [settlement] agreements purportedly made under its aegis to insure that the settlements appropriately balance the . . . statute’s dual objectives”—i.e., providing an “equitable sharing of costs among the parties at fault” and encouraging parties to resolve their disputes by way of settlement. (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 494.)

In *Tech-Bilt*,

the California Supreme Court set forth the factors to consider when determining whether a settlement was made in good faith. The *Tech-Bilt* factors are:

(1) a rough approximation of plaintiff’s total recovery and the settlor’s proportionate liability; (2) the amount paid in settlement; (3) the allocation of settlement proceeds among plaintiffs; (4) a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial; (5) the financial conditions and insurance policy limits of settling defendants; and (6) the existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants. (*Id.* at pp. 499.) “Practical considerations obviously require that the [trial court’s] evaluation [of the settlement] be made on the basis of information available at the time of settlement.” (*Id.* at p. 499.)

Substantial

evidence showing the nature and extent of the settling defendant’s liability is required. Without such evidence, a “good faith” determination is an abuse of discretion. (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1350; see *Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 834 [attorney’s declaration re settling defendant’s liability insufficient where he failed to provide specific supporting facts or expert opinion].)

“The

party asserting the lack of good faith . . . [is] permitted to demonstrate, if he can, that the settlement is so far ‘out of the ballpark’ in relation to [the above] factors as to be inconsistent with the equitable objectives of [Section 877.6]. Such a demonstration would establish that the proposed settlement was not a ‘settlement made in good faith’ within the terms of section 877.6.” (*Tech-Bilt*, *supra*, 38 Cal.3d at 499-500.) “The issue of the good faith of a settlement may be determined by the court on the basis of affidavits served with the

notice of hearing, and any counter affidavits filed in response, or the court may, in its discretion, receive other evidence at the hearing.” (C.C.P. § 877.6(b); see also *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.)

ANALYSIS:

Marz

moves for a determination of good faith settlement between Marz and Plaintiff Redden. In making its determination on the good faith nature of the settlement, the Court evaluates the factors set forth in *Tech-Bilt*.

A.

Amount

Paid in Settlement and Allocation of Settlement Proceeds Among Plaintiff(s)

Marz will pay Plaintiff \$100,000

in exchange for Plaintiff's dismissal with prejudice of the Complaint against Marz, Plaintiff's waiver of known/unknown claims by Plaintiff pertaining to Marz, and each party bearing their own costs.

B.

Rough

Approximation of Plaintiff's Total Recovery and Settlor's Proportionate Liability

Marz argues that this action

arises from a three-vehicle rear-end motor vehicle collision that occurred on April 18, 2022 on Foothill Boulevard. He

argues that the three cars involved were traveling the same direction with Marz as the lead vehicle, Plaintiff's as the second vehicle, and Mooradian as the third vehicle. He argues the parties

dispute the precise allocation of fault for the incident. Following written discovery, depositions, expert retention, trial preparation, and the investigation of the claims and defenses asserted in this action, Plaintiff and Marz reached a settlement resolving Plaintiff's claims against Marz before trial. Marz hereby seeks to resolve the cross-complaints upon the Court's determination that the settlement was entered in good faith.

Here, the Court finds that the proposed settlement amount is fair and reasonable in light of the facts of the case and Marz's proportionate liability. Furthermore, under the Tech-Bilt factors, a policy underlying C.C.P. § 877.6 includes the recognition that a settlor should pay less in settlement than she would if she were found liable after trial. (Tech-Bilt, supra, 38 Cal.3d at 499.) As the motion is unopposed, no opposing parties have demonstrated that the settlement is so far out of the ballpark in relation to the Tech-Bilt factors.

C. Other

Factors: Financial Condition and Insurance Policy Limits of Settlor, and Existence of Collusion, Fraud, or Tortious Conduct

Marz's counsel, Elliot T.

Solandt, states that the settlement was reached after extensive litigation, discovery, mediation efforts, and direct negotiations between counsel. (Solandt Decl., ¶6.) He states that the settlement was the product of arm's length negotiations and was not the product of fraud, collusion, or any conduct intended to prejudice the rights of any non-settling party. (Id.) The settlement amount is the full availability insurance policy limits applicable to Marz for this subject incident. (Id., ¶5.)

Thus, the other factors weigh in favor of granting Marz's motion.

D.

Conclusion

For the reasons discussed above, Marz's Motion to Determine Good Faith Settlement is granted.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or

signed in hard copy and entered into the court's records.

ORDER

Defendant

Matthew Atiwat Marz's Motion to Determine Good Faith Settlement came on regularly for hearing on July 7, 2026, with appearances as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

DEFENDANT MATTHEW ATIWAT MARZ'S MOTION TO DETERMINE GOOD FAITH SETTLEMENT IS GRANTED.

"A determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (C.C.P. § 877.6(c).)

ALL

EXISTING DATES FOR ALL OTHER PARTIES REMAIN.

DEFENDANT

MARZ TO GIVE NOTICE.

IT IS SO

ORDERED.